

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 14-005 Provisions Relating to Special Election

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, Mr. Ron Parker, a member of the Chickasaw Tribal Legislature in Seat 3 of the Pickens District, has submitted his resignation from the Legislature effective January 24, 1997, and

WHEREAS, Section 2 of Article XV of the Constitution of the Chickasaw Nation requires that vacancies occurring in the Tribal Legislature shall be filled within 60 days of the vacancy.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts and establishes the following conditions for the conduction of the Special Election to fill the vacant seat in the Chickasaw Tribal Legislature:

Election Timetable

February 12, 13, & 14	8 a.m. to 4:30 p.m. Daily - Filing Period for Candidates
February 14	5 p.m. - Deadline for Announcements to <i>Chickasaw Times</i> Newspaper
February 17 & 18	Challenge Period
February 19	Draw for Candidates' Position on Ballot
March 2	Voter Registration Closes
March 3	Ballots Mailed to Voters Outside Contiguous U.S.
March 7	Last Day for Candidates to Appoint Watcher
March 10	Ballots Mailed to Voters Inside Contiguous U.S.
March 24	5 p.m - Deadline for Ballots to be Returned to Post Office at Ada, Oklahoma
March 25	Ballots Counted, Voter Registration Reopens
March 28	End of Protest Period
March 31	Oath of Office Administered

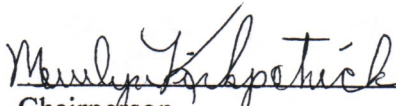
Exceptions to Election Rules and Regulations

(1) For purposes of this Special Election only, there shall be no runoff election. The candidate receiving the most votes shall be declared the winner. In the event of a tie vote, a coin toss conducted by the Chickasaw Nation Election Commission on the date the votes are tallied shall determine the winner.

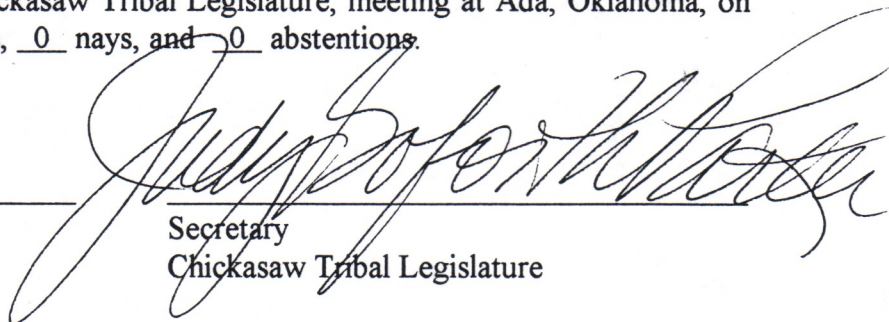
(2) Inasmuch as is practicable, the Chickasaw Nation Election Commission shall conduct this Special Election in strict adherence to and compliance with all applicable portions of the Chickasaw Nation Election Rules and Regulations as are contained in the Code of Laws of the Chickasaw Nation; provided, however, that should conflicts be noted between those rules and regulations and this Act, this Act shall prevail and be the determining factor for purposes of this Special Election.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature calls upon Governor Bill Anoatubby to call the Special Election to fill the vacant seat in the Chickasaw Tribal Legislature.

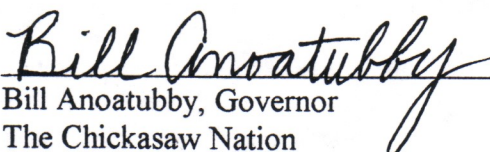
Executed in Special Session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on January 30, 1997, by a vote of 9 ayes, 0 nays, and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: January 31, 1997